

THE SOURCES OF THE SUSSEX DECLARATION: A RECONSIDERATION

by

JOHN BIDWELL

IN April 2017 several newspapers carried stories about the discovery of a manuscript Declaration of Independence. Conjectures about the political significance of the manuscript began to circulate in print and then proliferated on the web where the original announcements are still accessible. The discovery was sufficiently newsworthy that Prime Minister Theresa May and President Donald Trump took time to look at it while Trump was making his UK state visit in 2019. Unfortunately, they and their advisors were misinformed. Basic assumptions about the date and origins of the manuscript are in error and have prompted unfounded claims about its historical importance. I hope to correct those errors here and set the record straight by reviewing the bibliographical arguments that made that manuscript a media sensation.

My main concern is with an article by Danielle Allen and Emily Sneff in the *Papers of the Bibliographical Society of America* (PBSA). It serves as the definitive announcement of the discovery and a means of explaining the authors' research methods. They describe and date the manuscript (see figure 1) in the article and suggest a route by which it came to its present location in the West Sussex Record Office (WSRO), Chichester, England. In brief this is how they present their findings: sometime between 1783 and 1790 a clerk made a copy of the Declaration of Independence, the manuscript that had been engrossed on parchment for the Continental Congress in 1776. The clerk had trouble reading the original, committed errors of transcription, and even smudged the title, but was ambitious enough to write it out on a large sheet of parchment. Measuring 24 by 30½ inches, it was intended for display and was probably commissioned by the Pennsylvania lawyer James Wilson (1742–1798), one of the Founding Fathers who had signed the engrossed Declaration. Wilson played a prominent part in drafting the Constitution, which he also signed, and relied on this copy to argue for a strong national government founded on the will of the people rather than a loose confederation of semi-independent states. His concept of nationhood is evident in the way the clerk transcribed the fifty-six signatures in the engrossed Declaration, not grouped by states as in the original but intermingled in a seemingly

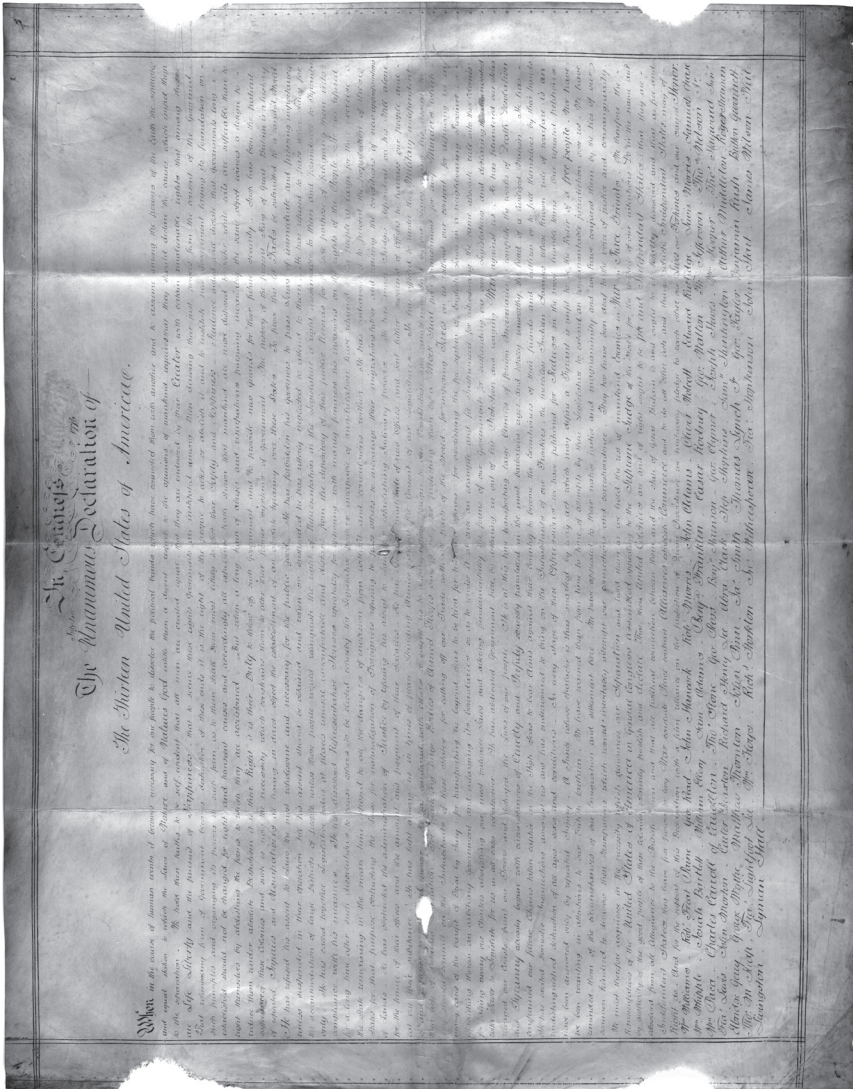


FIGURE 1. The Sussex Declaration. West Sussex Record Office, Add Mss 8981. 24 x 30 1/2 inches.

random order, as if to express the personal convictions of the Signers instead of their duties to the states they represented.¹

After this preliminary overview, the authors explore the historical context in a second article published in the *Georgetown Journal of Law & Public Policy* (GJLPP). Here they narrow down its dates to 1785–1787 and discuss how it figured in the deliberations of the Constitutional Convention. They note the possibility that it had belonged to Charles Lennox, third duke of Richmond (1735–1806), whose family seat was not far from Chichester. Richmond was an advocate of the American cause, a proponent of parliamentary reform, and a tenacious member of the opposition sympathetic to the ideals enunciated in the Declaration. Allen and Sneff make other conjectures in those two articles and expand on them in statements to the press. They refer to the manuscript as the Sussex Declaration and I will too, although I disagree with them about its origins and significance.²

While the PBSA article was being prepared for publication, they issued a press release on 20 April 2017 in collaboration with a Communications Officer at Harvard University. Within days, articles about the Sussex Declaration appeared in the *New York Times*, the *Guardian*, and the *Washington Post*. A CBS television crew showed up at the West Sussex Record Office to film the document on site. A Wikipedia article about the “physical history” of the Declaration cites two of the newspaper reports as well as the press release, which can still be found online in Danielle Allen’s Declaration Resources Project website. They elaborate on their hypotheses in a lecture at the National Archives broadcast by C-SPAN on 6 July 2017 and recapitulated in the online National Archives News with a link to a YouTube version of the lecture. There and in other media appearances they speculate that Thomas Paine may have been an intermediary responsible for bringing the Sussex Declaration to the duke of Richmond. Their claims are less explicit in the *New York Times* article, which only queries the connection with Paine and Richmond. Performing due diligence, however, the reporter consulted outside experts such as a legal historian who observed that even if their attribution to Wilson is wrong, an early manuscript of the Declaration is still “the discovery of a lifetime.”³

At the end of the PBSA article Allen and Sneff consider an alternative hypothesis: their document was based on a miniature facsimile Declaration printed in Boston in or after 1836 (figure 2). I brought that facsimile to their

1. Danielle Allen and Emily Sneff, “The Sussex Declaration: Dating the Parchment Manuscript of the Declaration of Independence Held at the West Sussex Record Office (Chichester, UK),” *Papers of the Bibliographical Society of America* 112 (2018), 357–403. Andrea L. Immel, the late William L. Joyce, Elizabeth K. Lynch, Philip S. Palmer, David L. Vander Meulen, Ted Widmer, and Michael Winship very kindly provided advice and assistance while I was preparing the first drafts of this essay.

2. Danielle Allen and Emily Sneff, “Golden Letters: James Wilson, the Declaration of Independence, and the Sussex Declaration,” *Georgetown Journal of Law & Public Policy* 17 (2019), 193–230. This issue contains the proceedings of a symposium on the life and career of James Wilson.

3. Kerri Lawrence, “Historians Discuss Their Discovery of ‘Sussex Declaration,’” National Archives News (10 July 2017), <https://www.archives.gov/news/topics/sussex-declaration> (accessed 20 March 2023); Jennifer Schuessler, “Discovered: An Unknown Declaration,” *New York Times* (22 April 2017), C1 and C4; Declaration Resources Project, <https://declaration.fas.harvard.edu> (accessed 20 March 2023).

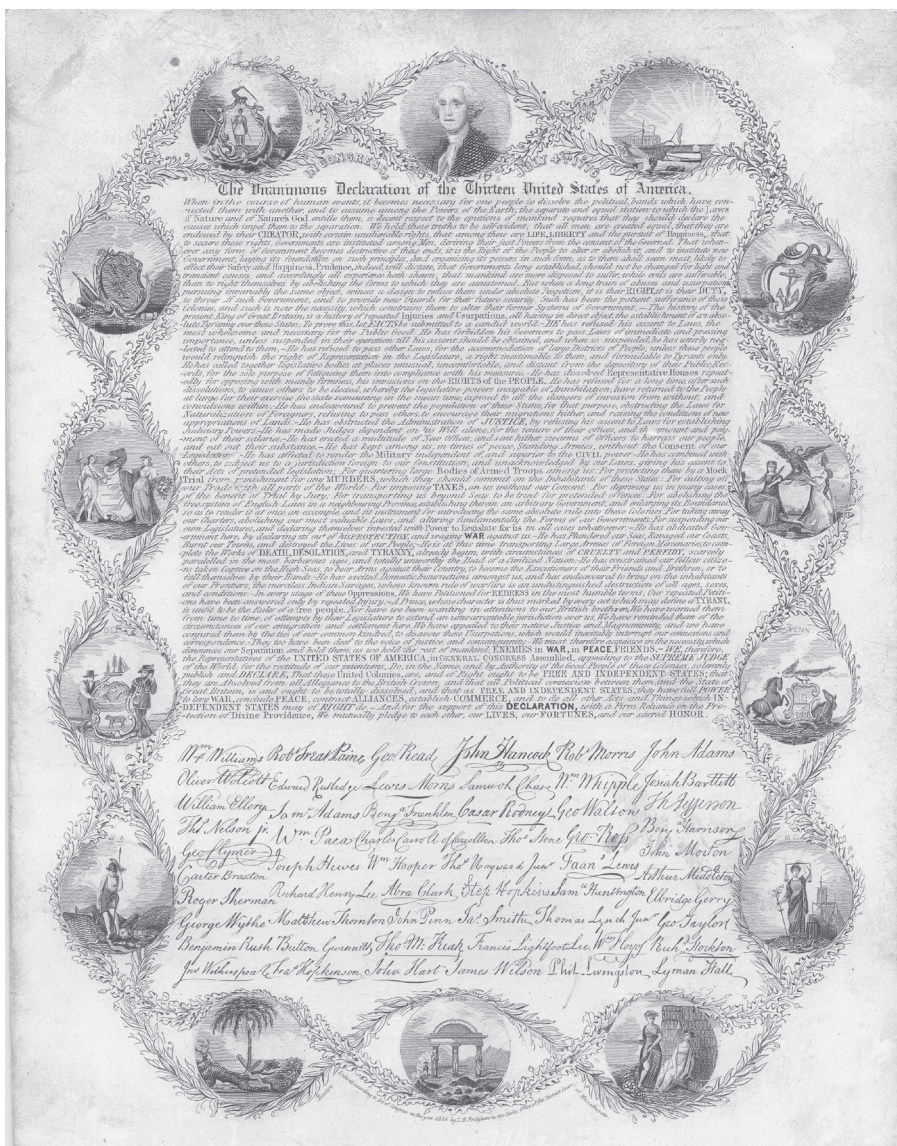


FIGURE 2. The Lewis H. Bridgham miniature Declaration. Author's collection. Reproduced slightly enlarged, $5\frac{3}{4} \times 4\frac{1}{2}$ inches.

attention after they had sent me a preliminary draft of their article. No great amount of scrutiny was required to see that it was the source of the Sussex Declaration. The similarities in style and structure are obvious. In my view they are not dealing with a clerk who rearranged the signatures to fulfill Wilson's political agenda but rather an amateur who transcribed the facsimile in an exercise of penmanship. But they submit that hypothesis only to dismiss it. Their rebuttal touches on several topics, mainly textual inconsistencies and a question of quality: the facsimile was a mass-produced keepsake measuring no more than $5\frac{3}{4}$ by $4\frac{1}{2}$ inches. Why, they ask, would the clerk use such a paltry print to copy out a Declaration on this scale? They defend their position by pointing out anomalies in the layout of the facsimile not repeated in the manuscript, a transcription problem posed by the sequence of signatures. If the clerk had been copying the facsimile, they say, surely those anomalies would be present in the manuscript.

So, what is the source of the Sussex Declaration: the parchment engrossed for the Continental Congress, signed by most of its members on 2 August 1776, the iconic document in the National Archives—or a cheap facsimile printed in Boston some sixty years later? What is the source of the Boston facsimile? In the following I will propose answers to those questions less glamorous than the hypotheses of Allen and Sneff but more consistent with the writing practices and design considerations involved in making a copy of the Declaration. Here, as in other bibliographical endeavors, the pure and simple physical evidence should prevail over less substantial arguments, no matter how many of them may be mustered against a few overriding objections. I will address the main arguments of the *PBSA* article, which is intended to establish the date of the Sussex Declaration. I will not be concerned with the *GJLPP* article, for it is entirely predicated on its predecessor and assumes that the alternative hypothesis has been refuted. If the dates they propose are not valid, then they cannot attribute it to James Wilson and cannot claim that Wilson used it during the Constitutional Convention.

I

Allen and Sneff begin by recounting the provenance of the Sussex Declaration. They note that it was deposited in the WSRO by a local solicitor whose firm had done business with the Richmond family. A WSRO archivist told them that the solicitor once had his pick of the family papers that had been entrusted to the firm since the eighteenth century, but were discarded in bulk sometime before 1956. Indeed, the finding list of the deposit mentions two or three items relating to the family but they are so scattered and insignificant that it is hard to believe that they came from a trove dating back to the eighteenth century. The deposit is clearly the gleanings of a local history collector who found a few curiosities in his office and kept anything else that caught his eye. The finding list relegates the Sussex Declaration to a miscellaneous section at the end where it is accompanied by an 1828 legal opinion about a conveyance to the duke of Richmond's trustees, checks drawn on a London bank in the 1840s and 1850s, an advertisement of a London dyer active ca. 1844, a list of the kings and queens of England, and a

1750 letter from the bell ringers of Chichester. With the exception of the letter, nothing in this section has a secure date earlier than 1825. Nonetheless a WSRO archivist dated the Declaration in the late eighteenth century, an educated guess for cataloguing purposes, but Allen and Sneff make it a starting point of their exposition in *PBSA*.

They find additional evidence in the physical features of the Sussex Declaration. They note that it was written on a large size of parchment suitable for exhibition and that it has nail holes in the corners as if it had been displayed at one point. On the advice of conservators they concede that the nails might have been meant to restrain the parchment for other purposes. They view the square shape of the nail holes as evidence for a date in the eighteenth century, but the source they cite contradicts their conclusions. Yes, early hand-wrought iron nails were square but so were the cut nails produced in British and American factories during the first half of the nineteenth century. Wire nails, which would have made round holes in the parchment, were not introduced until the 1850s in America or a bit earlier in England. The parchment was made of a middling-quality sheepskin. They contend that it was "well prepared," which may be so, but a Library of Congress conservation report graded it below a more prepossessing calfskin document they had brought in for comparison.⁴

The Sussex Declaration may have been put on view, but then it was filed away and forgotten. It was folded twice for storage, in which state it became severely soiled on one side, badly abraded along the folds with loss of text, and seriously damaged on the outer edge of the four leaves with loss of parchment. As to the edge damage, Allen and Sneff admit that a rodent could be to blame but believe it is more likely that a seal had been removed (*PBSA*, p. 362). In that case, however, the two outer leaves would have suffered more than the two inner leaves. When I saw it at the WSRO, the depredations seemed to me to be uniform on each of the four leaves. They do not explain what function a seal would have served and why it would have been removed. But those conjectures are beside the point because the parchment was then folded a third time as if it had been demoted to an even smaller storage space. These signs of abuse and neglect are hard to square with their contention that it was a "ceremonial" manuscript, a word used repeatedly in the *PBSA* article to signify the ambitious intentions of those who produced it. In the *GjLPP* article they use the word even more frequently to express its iconic function and the innovative ideas of James Wilson, who used it to elaborate his views on the Constitution. If it was owned by Richmond, then it must have fallen out of favor in a bad way to end up in that ignominious condition.

The title has some words in black letter, but the text is mostly in a utilitarian round hand, which Allen and Sneff attribute to a clerk employed by Wilson. It cannot be assigned to a prominent politician although they have examined the writings of likely candidates and their amanuenses as well. They notice the

4. Preservation Directorate, Library of Congress, "Advanced Image Processing of Multispectral Images of the Sussex Declaration," Declaration Resources Project website; Lee H. Nelson, "Nail Chronology as an Aid to Dating Old Buildings," *History News* 23 (1968), 203-14. See also "Among the Nail-Makers," *Harper's New Monthly Magazine* 21 (1860), 161-63.

absence of the long *s* prevalent in manuscripts of this period, but they believe that the clerk was one of the “stylistic radicals” who had dropped that usage. They do not mention that Wilson sometimes used a long *s* in his drafts of the Constitution, apparently more conservative in his writing practices than his hired hand. Arguing for the American origins of the manuscript, they compare it with contemporary deeds and indentures, some reproduced in the *PBSA* article, some in the Declaration Resources Project website. They detect stylistic features more likely to be local than to come from England, but to my mind the sample is too small to be convincing. Their morphological analysis of the document has been more useful for their purposes than the script itself, which is difficult to date.

Allen and Sneff assert that the clerk made several drafts before completing the “final fair copy” of this manuscript (*PBSA*, p. 367). They perceive a certain amount of effort expended to produce a symmetrical composition, uniform line endings, no word breaks, and other artistic touches worthy of a document intended for display. Nonetheless the clerk botched the job at the beginning and made it worse while trying to correct it. He began to write a date in the same size and style of the black letter “In Congress” on the first line of the title but then thought better of it and began to rub out his mistake. His erasure merely smudged his work leaving remnants of that date easily apparent at first sight. For Allen and Sneff this was an opportunity for further scientific investigation, the results of which are posted on the Declaration Resources Project website and summarized in the *PBSA* article. They commissioned various tests using imaging techniques and other digital technologies to scrutinize the erasure. In the documentation they received they see evidence that the erased date referred to when the clerk was working on the manuscript: either “July 4, 178” or “July 4, 179,” the last digit indecipherable. Starting on the fair copy, forgetting the momentous date of Independence, the clerk made an absent-minded slip of the pen as if he was thinking about his present circumstances instead of his assignment to reinterpret the Declaration.

The technical reports on the website are inconclusive and are mostly about methodology. A Library of Congress conservator considered the possibility that the third digit in the erased date might be an 8 or 9 but was not willing to commit to that reading. I believe there is an easier explanation. Yes, the clerk made a mistake but when and why did he try to fix it? It is more likely that the clerk forgot the July 4, 1776, date while copying out the text, and then went back to write it on the first line next to “In Congress.” Then he realized that this stopgap measure would spoil the symmetrical composition and erased his work, deciding instead to insert the missing date between the first and second lines, obviously an afterthought. He had to break it up at either end of the title and cut it down to a size that would fit between the lines. He used a similarly compressed cursive to mend a mistake in the fifth line of text, correcting the word “when” to “whenever.” This sequence of events explains the smudged title, the inserted date, and the amateurish script. Other mistakes provide opportunities for Allen and Sneff to devise an elaborate argument for the early origins and historical significance of the Sussex Declaration. These too can be explained by viewing them in a bibliographical context, a means of understanding the copying process in manuscript and print.

II

The bibliographical record begins in 1776 with the broadside printed in the shop of John Dunlap and continues through the eighteenth century with its letterpress progeny in newspapers and broadsides. In the nineteenth century, however, Americans turned to the engrossed Declaration for a validation of their republican beliefs and an affirmation of their national identity. They could buy copies of the manuscript reproduced the way they wanted to see it, more as an object of veneration than an artifact of history. They expected the text to be accurate, of course, but they also sought to enhance its meaning with patriotic imagery, artistic interventions maybe strange to our eyes yet perfectly compatible with their concept of a facsimile. New and improved intaglio, letterpress, and lithographic printing technologies helped them to realize its iconic potential in copiously ornamented allegorical compositions, some intended to be works of art, others directed toward the bottom of the market. Good and bad, each of these prints has a publication history, which can tell us why some were not reliable, what went wrong with them, and how they caused the mistakes in the Sussex Declaration.

Benjamin Owen Tyler and John Binns were the first to issue facsimiles of the Declaration. Tyler was a writing master, Binns a newspaper publisher, each in his own way well qualified to produce and market patriotic prints. Tyler stole a march on Binns, who had issued proposals in March 1816 but allowed his artists to take their time and did not finish his version until October 1819. Tyler issued his in May 1818 at half the price his rival had announced. And as a further provocation, he launched an advertising campaign capitalizing on an endorsement he had received from Thomas Jefferson. Binns took the bait and complained about the interloper's exploitive tactics. Quick to take offense, eager for publicity, the facsimilists fought a newspaper war extolling the beauty and accuracy of their products while attacking the character, honesty, and patriotism of their adversaries. Both obtained impressive certificates of authenticity, Tyler from the Acting Secretary of State Richard Rush, Binns from Secretary of State John Quincy Adams. Both embellished the text in styles fashionable at that time. Tyler showed off his skills in penmanship by transcribing the text in ornamental scripts, some more elaborate than others but reaching a rhetorical crescendo in the "emphatical words" at the end. Binns opted for an allegorical design, an oval "cordon of honor" composed of state seals surrounding the text and surmounted by symbols of prosperity next to medallion portraits of Washington, Hancock and Jefferson. The fifty-six signatures beneath the text were the only portions of these prints rendered in what we would consider a facsimile, Tyler's truer to the original than Binns's, both with distinctive traits that make them easily identifiable. The writing master improved some of the signatures, unconsciously correcting marks of infirmity and haste. The signatures in the allegorical print had to be truncated in places to fit in that crowded composition.⁵

5. Benjamin Owen Tyler, *Declaration of Independence: A Candid Statement of Facts* (1818), pp. 6 and 15; John Binns, *Recollections of the Life of John Binns* (1854), pp. 234–37; "Declaration of Independence," *Niles' Weekly Register* (6 July 1816), 310–11; "Declaration of Independence," *Daily National Intelligencer* (23 October 1819), 2.

In 1823 John Quincy Adams commissioned an official government facsimile of the entire manuscript, a state-of-the-art replica expertly engraved by William J. Stone. It is the definitive record of the original, which suffered so much mistreatment and neglect that it is now barely legible. Printed on parchment in a limited edition, the Stone facsimile did not circulate as widely as the Binns and Tyler facsimiles, which were copied, imitated, and adapted well into the 1890s. Even a restrike on imitation parchment could not compete with prints decorated with allegorical vignettes, patriotic emblems, and portraits of Founding Fathers. As much as one would expect these decorations to defeat the function of a facsimile, this style did not go out of fashion until the end of the century. Then, finally, the unadorned Stone facsimile came into its own and became the standard visualization of the document, the source of reproductions published by the government, expounded in textbooks, sold as souvenirs, and printed on Independence Day in the *New York Times*.⁶

Facsimile signatures derived either from Binns or Tyler appear in more than ninety prints during the nineteenth century. The chain of transmission can be complicated, a multistage process with some prints acting as intermediaries, others deriving the signatures from reproductions in illustrated books. Nonetheless, they all belong to those two families. With one exception, publishers paid no attention to the Stone signatures until just before the Centennial. At least eighty prints have an ornamental border of state seals directly or indirectly based on Binns's "cordon of honor," a versatile design motif easily adapted to include additional pictorial matter. No less popular, Tyler's "emphatical" rendition of the text inspired at least twenty-seven imitations in letterpress, intaglio, and lithography. The New York map and print publisher Horace Thayer incorporated Tyler's lettering in lithographs ca. 1859–1863, large allegorical compositions including state seals, the American eagle, and a miniature reproduction of John Trumbull's painting *The Declaration of Independence*. W. Duke Sons & Co.

6. Printed in or after 1833, the restrike was issued as a folding plate in Peter Force's *American Archives*, 5th ser., vol. 1 (1848). Force approved a payment to Stone for this printing job in 1839. Most surviving copies are on folded imitation parchment, although some are unfolded, possibly because Stone or Force sold them separately. The American Antiquarian Society has a copy on paper watermarked J WHATMAN TURKEY MILL 1850. The Department of State had a stock of restrikes on hand in 1893, one of which is at the Massachusetts Historical Society. Electrotpe reprints could have been made during the nineteenth century—but probably not until 1894 or 1895, when the United States Coast and Geodetic Survey produced electrotpe plates for that purpose. For more on the Stone facsimile and its restrikes, see Leonard Rapport, "Fakes and Facsimiles: Problems of Identification," *American Archivist* 42 (1979), 23–26; Catherine Nicholson, "Finding the Stones: National Archives Discovers Several Engravings of the Declaration," *Prologue Magazine* 44 (Summer 2012), <https://www.archives.gov/publications/prologue/2012/summer/stone.html> (accessed 20 March 2023). Full-size reproductions were priced at thirty cents and forty-five cents in the *Catalog of U.S. Government Publications* during the 1950s. At the other end of the scale, a copy of the original limited edition Stone facsimile recently sold for \$4,420,000 (Freeman's, Philadelphia, 1 July 2021, lot 1), a record-breaking price due to the provenance of that copy, formerly owned by the Signer Charles Carroll.

reproduced the Tyler print in its entirety above an advertisement for cigarettes ca. 1887–1890.⁷

Beginning in the 1830s Boston publishers experimented with combinations of the Binns border and the Tyler text. The earliest attempt to my knowledge is a letterpress broadside produced by the Boston Bewick Company around 1834–1836. A compositor copied Tyler's title inasmuch as the first words *In Congress, July 4, 1776* are set in a curve at the top of the print. The facsimile signatures are part of that family as well as the text, which is printed in a script type interspersed with ornamental types imitating the "emphatical words." The display faces include black letter, a bold Antique, and two sizes of open shaded caps. The state seals are in the style of the Binns print and its derivatives, although they are shaped like a rectangular frame rather than an oval border. But here too the seals provide a symbolic entourage for the text, each occupying a compartment inside intertwining oak-leaf and olive garlands with the national seal at the center. It easily outdoes other letterpress broadsides in design and execution but it was intended to be cheap. One version was priced 12 ½ cents in the imprint. Another version was published by Prentiss Whitney, a Boston auctioneer who had a small printmaking business on the side. The Bewick firm had it stereotyped, no doubt as a steady selling product but also as a giveaway specimen of its fancy job printing and stereotyping services. The New York print dealers Phelps & Squire obtained a stereotype copy of the state seals frame, replaced the national seal with a portrait of Washington, and reset the text in the same style for an adaptation issued around 1835–1837. Phelps in another partnership, Phelps & Ensign, used a stereotype plate of the entire print to replenish his stock of Declarations around 1838–1842. Stationers' Hall, an office supplies store in Boston, published a letterpress imitation with the same script type, a similar title design, and a rudimentary border of state seals jumbled together with portraits, ornaments, and recycled illustrations on patriotic themes. No doubt other reprints and imitations have yet to be identified. Boston Bewick's intermarriage of two Declaration families must have had numerous offspring through the stereotyping endeavors of the firm.⁸

7. These figures are based on a checklist in *The Declaration in Script and Print: A Visual History of America's Founding Document* (2024), published while this essay was in its final stages of editing and revision. The checklist describes nearly two hundred prints and broadsides published between 1816 and 1900. I made an initial attempt to account for the nineteenth-century facsimiles in "American History in Image and Text," *Proceedings of the American Antiquarian Society* 98 (1988), 247–302. At that time I was able to describe forty-eight typical examples, not just the facsimiles but also broadside editions of the Declaration. So far the only instance of the Stone signatures I have found before the Centennial period, besides the restrikes mentioned above, is an anastatic transfer print published in 1846. Copies are in the Library of Congress, the Boston Athenaeum, and the Independence National Historical Park.

8. A consortium of artists founded the Boston Bewick firm in March 1834 by an act of incorporation allowing them to hold assets amounting to \$120,000. Underinsured, they failed to recover from a fire in September 1835 and withdrew in favor of the senior partner Abel Bowen, who continued to practice "Fancy Job Printing" at the same address (William Henry Whitmore, "Abel Bowen," *Bostonian Society Publications* 1 [1886–1888]: 44; *Boston Daily Advertiser and Patriot*, 25 September 1835, 2; [Boston] *Columbian Centinel*, 20 April 1836, 3). The Boston Bewick Company and Phelps & Squire prints are described in the PAAS article, items 13 and 14, and in *The Declaration in Script and Print*, items 33 and 36. A copy of the Stationers' Hall print is at the American Antiquarian Society. A copy of the Phelps & Ensign print is in the Daniel Hamelberg collection.

Lewis H. Bridgham (1808–1883) oversaw the moulding and casting operations in Boston Bewick's stereotype foundry. He had a long career in job printing, beginning around 1828 in Providence, RI. He first appears in Boston city directories in 1835 identified as a stereotype founder and then drops out of sight after the company closed down in 1836. He reappears in the 1840s as a printer, for a while successful enough to obtain a steam power press and exercise the right to display his name in Boston imprints. In the 1850s he moved to Brooklyn and made his living as a reporter in the office of the Associated Press. After just over ten years in journalism, he resumed the printing business, taking on small jobs at various New York addresses until he died in 1883. An obituary indicates that he had been more than a mere journeyman and was "well-known" for his printing work in Boston. He was prominent enough to have taken out the copyright for one of Boston Bewick's stereotype ventures. Among other achievements he published an engraved miniature facsimile of the Declaration very popular in its day. It reached a wide public in Boston and New York—and may have even gone as far as England. I believe it to be the source of the Sussex Declaration.⁹

III

Dated 1836, the copyright statement in Bridgham's facsimile contains his name, but otherwise it is difficult to determine what role he took in its design and production. Perhaps he had the idea to make a miniature facsimile, a tour de force of lettering and engraving printed on coated paper, all the better to display the precision craftsmanship of the artists he employed. He probably knew about previous attempts to sell Declaration novelties in unusual formats such as prints on silk or satin and, most notably, a commemorative handkerchief priced at a dollar in 1826. Other types of pocket curiosities had already found a ready market in America—portrait miniatures, miniature silver toys, and thumb Bibles, just to mention a few examples. By catering to this fashion, he started a trend soon to be taken to an extreme by the Philadelphia bank note engraver Charles Toppan, who downsized the Declaration to fit inside a 2 by 3 inch card on coated stock, a promotional keepsake first issued in 1840.¹⁰

9. [Providence] *Rhode-Island American* (20 June 1828), 4; *American Magazine of Useful and Entertaining Knowledge* 1, no. 4 (December 1834), advertisements; [Boston] *Daily Evening Transcript* (29 July 1847), 2; Richard A. Schwarzlose, *The Nation's Newsbrokers, Volume 1: The Formative Years, from Pretelegraph to 1865* (1989), p. 178; *New-York Tribune* (30 October 1883), 2. Perhaps acting on his own account, Bridgham obtained the copyright for *Worship God and Keep His Commandments* (1835), an illustrated broadside "stereotyped and printed by the Boston Bewick Company."

10. *In Congress, July 4th. 1776. The Unanimous Declaration of the Thirteen United States of America*, Boston: L. H. Bridgham, 1836. Copies in this state are common and can be found in the American Antiquarian Society, the New York Public Library, the Library Company of Philadelphia, and other libraries. They frequently come up for sale at modest prices, viz. Swann Auction Galleries sales 21 June 2016, lot 132 (\$344), and 26 September 2019, lot 94 (\$219). The commemorative handkerchief was advertised in the *Georgetown Gazette* (14 July 1826), 1; copies are described in Herbert Ridgeway Collins, *Threads of History: Americana Recorded on Cloth 1775 to the Present* (1979), nos. 23 and 58. For the fame of the Toppan facsimile, "the Smallest Engraving in the world," see *Cincinnati Daily Gazette* (21 September 1871), 4; (23 September 1871), 1.

Bridgham's design is almost entirely based on the Boston Bewick Company facsimile. The most obvious borrowings can be seen in the facsimile signatures, the state seals in an oak-leaf and olive-wreath border, the curvature of the title, and the "emphatical words" in the text. Some adjustments had to be made to extrapolate these design elements from a large letterpress broadside, and there was one change in iconography—a portrait of Washington was substituted for the national seal—but Bridgham was clearly indebted to his former employer for the concept and layout of his facsimile. Surely it is no coincidence that he published it just after he left that firm. Intaglio was not his medium, but he would have learned about it while on the job and would have understood its potential for delineating fine detail in miniatures. His model, the letterpress broadside, he would have known from hands-on experience in the stereotype foundry or the pressroom. The Boston Bewick Company gave him the means and the motivation to take on this project at a turning point in his career.

The timing of his publication could not have been better. In 1837 a Boston gallery presented a life-size tableau of mannequins reenacting the ratification of the Declaration, each of the fifty-six Signers dressed in period costume. A broadside advertisement assured the public that it was not a painting, although the scene seems to have been based on Trumbull's *Declaration of Independence*. The Committee of Five takes center stage, Franklin to the left of Jefferson, Adams to his right, Livingston and Sherman behind them, while Jefferson submits the committee's text to the president of Congress. This inspiring spectacle could be seen for twenty-five cents, children half price, from eight in the morning until ten at night. If anyone wanted to take away a souvenir, the Bridgham facsimile would have been easily available at that time and just the right size for that purpose. Indeed it was reprinted in 1839 with the border reworked yet again to change the title and replace the Washington portrait with Trumbull's *Declaration*.¹¹

The text portion of Bridgham's print determined the lettering in another Boston edition, which also incorporated Trumbull's *Declaration*. Published by the Franklin Print Company in 1838, this one was more than twice the size of the miniature, with a more elaborate oak-leaf border containing twenty-six state seals, the national seal, and portraits of the presidents. It contains a competent reproduction of the Asher B. Durand print after Trumbull's first version of the painting (to be precise, the painting now in the Yale University Art Gallery, not the second version in the Capitol Rotunda or the third version in the Wadsworth Atheneum) as well as a key to the print consisting of forty-eight numbered outline figures. Numbered facsimile signatures identify each of the figures. The Franklin Print Company credited the pictorial part to the engraver Denison Kimberly, the lettering to John B. Bolton. Although reformatted for different proportions,

11. *The Great National Exhibition of the Signers of the Declaration of Independence*, Boston: W. W. Clapp, 1837; *In the Continental Congress, of 1776, on the 4th. of July, The Unanimous Declaration of the Thirteen United States of America*, Boston: Published by N. Dearborn & Son—53 Washington St. Boston, & 164 Broad Way, New York, 1839. As yet the only copy I have found in this state is at the New-York Historical Society, although the Library Company of Philadelphia has an undated variant with the imprint: Published by N. Dearborn. No. 53 Washington St. Boston.

the lettering is close in style to that of the Bridgham miniature and imitates almost all of the “emphatical words” in size and shape. Conceivably Bolton wrote the text for Bridgham, but he does not appear in Boston city directories until 1838, and I have not found other examples of his calligraphic writing that might confirm this supposition. By trade, however, he was an engraver, perhaps a specialist in script. He arrived in Boston in 1831 age twenty after emigrating from Halifax, Nova Scotia, and started to make his living from engraving in 1836, when Bridgham’s print was published. Whatever his connection with Bridgham and the Franklin firm, both prints were successful, and both were reworked for reprint editions. The latter reappeared with additional illustrations and furnished Declaration lettering reduced to Bridgham dimensions in maps with patriotic motifs published by the New York print dealers who had reprinted the Boston Bewick facsimile.¹²

Broadening his horizons, Bridgham may have brought copies of the miniature to England. My sole evidence for this conjecture is a passenger list of the *Great Western* steamship arriving in New York from Bristol in August 1838. His name is on the list along with merchants, men of the cloth, New York notables, wives, children, and servants. What business he might have had in England is impossible to ascertain, but he managed to travel in style on a recently launched Atlantic liner renowned for its size and speed. Perhaps his trip had something to do with a change in career during the late 1830s when he dropped out of the Boston directories. While exploring opportunities abroad, he could use his miniature as a means of self-promotion, a calling card that could be carried about in quantity and presented as an example of American achievements in the graphic arts. With that in mind, Binns had already sent copies of his print to friends and customers in England, where it made “a highly favorable impression.”¹³

IV

Someone was sufficiently impressed by the Bridgham print to try to copy it on parchment. I will call that person a copyist rather than a clerk, for I doubt that a professional could have been responsible for the layout and script of the Sussex Declaration. I have already mentioned the amateurish mistakes the copyist made in the transcription of the title. The text has none of the elegant modulation and

12. *The Declaration of Independence, with Fac-similies of the Signatures and Likenesses of the Signers; the Arms of the States and of the United States, and Portraits of the Presidents*, Boston: Published by the Franklin Print Compy., 46 Court Street, 1838. A copy in this state is reproduced as fig. 5 in the PAAS article. Six later editions and adaptations are described in *The Declaration in Script and Print*, item 38, including the maps with the repurposed lettering: *Phelps & Ensign’s Travellers’ Guide, and Map of the United States* (1840) and *Ensign’s Travellers’ Guide, and Map of the United States* (1845). Bolton noted his immigration status when he applied for citizenship, 4 September 1847, Circuit Court, Massachusetts, Naturalization Records, 1845–1850 (Ancestry.com). *Leading Manufacturers and Merchants of the City of Boston* (1885), p. 316, contains a short account of his career commending his “artistic elegance and originality of design.”

13. Binns, *Recollections*, p. 236. The passenger list is printed in the [New York] *Evening Post* (6 August 1838), 2.

sober grace one would expect to see in a specimen of eighteenth-century running round hand. In the following, I will consider other aspects of his or her work, all of which must have come from Boston rather than the other way around. These remarks are not intended to be a point-by-point refutation of the *PBSA* article, but they counter the main arguments and provide a more convincing sequence of cause and effect.

Emphatical Words. The copyist wrote out in a larger script sixty-eight words of special significance, beginning, for example, with "Nature" and "Nature's God" and ending with "Lives," "Fortunes," and "Honor." Allen and Sneff notice that forty-four of those words correspond to Tyler's "emphatical words," a 65% correlation, a reason why they consider the Sussex manuscript to be a source for the facsimile. In a footnote they observe an almost one-to-one correspondence of "emphatical words" between the manuscript and the Bridgham print, a correlation I calculate at nearly 90%. Surely that is a more revealing statistic and demands an explanation, but they draw no conclusions in the footnote and concentrate on Tyler instead. They trace the fashion for the "emphatical words" back to the original 1776 engrossed Declaration, which capitalizes most of the substantives as a matter of course and sometimes switches from round hand to black letter for extra effect in the last paragraph. One could go back one step further and say that the black letter was a stylistic decision on the part of the scribe, Timothy Matlack, who sought to transpose in script some of the letterspaced caps and small caps he encountered in his source document, the Dunlap broadside.

In any case Allen and Sneff assume that the ornamental scripts in Tyler's print were beyond his powers. They surmise that he must have consulted their manuscript or a now lost descendant of their manuscript while deciding which words to emphasize. They call him an engraver although he styles himself Professor of Penmanship in the imprint, which states explicitly that the engraving had been done by Peter Maverick. This division of labor helps to explain the advertising function of Tyler's *Declaration*. He intended it to be a specimen of calligraphic skill, not just the utilitarian running hand he taught his students but also the decorative lettering he proffered as his professional credentials. American writing masters drummed up business by publishing engraved copybooks with title pages couched in a multitude of plain and fancy scripts. In 1815, while teaching in New York, Tyler promoted his system of instruction in a patriotic print also engraved by Maverick, *Eulogium Sacred to the Memory of the Illustrious George Washington*. The *Eulogium* changes tone and tempo with calligraphic enhancements in selected passages of the text as well as embellished black letter in the title. He perfected that approach three years later when he produced his *Declaration*, fully capable of choosing the "emphatical words" on his own.¹⁴

This style of decorating the Declaration caught on immediately and remained in fashion throughout the nineteenth century. We have seen the succession of Boston editions, a step-by-step transmission of "emphatical words" from Tyler to Bridgham. If we are to accept that Tyler referred to the Sussex Declaration or

14. Ray Nash, *American Penmanship, 1800-1850: A History of Writing and a Bibliography of Copybooks from Jenkins to Spencer* (1969), nos. 83-88.

a lost descendant when writing out his “emphatical words,” a 65% correlation, how are we to explain the 90% correlation in the Bridgham print? Bridgham’s artist would have had to be even more dependent on the Sussex Declaration, which would have somehow re-emerged in Boston eighteen years after coming into the hands of Tyler. Here again we should seek an easier explanation: the Bridgham print is the source of the Sussex Declaration. The copyist acknowledged its rhetorical effects by writing out in a larger script almost every one of its distinctive words.

Textual variants. Allen and Sneff relegate to a footnote a discussion of textual variants that appear only in the Bridgham print and the Sussex Declaration (*PBSA*, p. 398). In fact, the same readings also occur in the Franklin Print Company facsimile, the last in the succession of Boston editions. They are all ordinary errors although the spelling “paralleled” in the phrase “scarcely paralleled in the most barbarous ages” might be justified by precedents in that period. Binns and Tyler adopt a primarily British usage in the spelling “connexion,” which they employ in the phrases “interrupt our connections” and “all political connection.” This variant, not mentioned by Allen and Sneff, occurs in all of the Boston editions but not in the Sussex Declaration. That could be an argument in favor of a direct relationship with the engrossed Declaration, although one could just as easily surmise that the copyist opted for the “connection” spelling, which was also prevalent in England in the 1830s. Perhaps more to the point, the variant spelling “paralleled” in the Sussex Declaration becomes significant because it did not originate in the Tyler facsimile but in the Bridgham facsimile. Bridgham’s artist had to cope with the spelling “paralleled” in the Boston Bewick edition, an obvious mistake, but guessed wrong when he tried to fix it. The Sussex copyist did not have any better ideas.

The sequence of signatures. For Allen and Sneff, the signatures are the most important part of the Sussex Declaration. They perceive a pattern in the signatures, a “hidden ordering principle” devised by the copyist in accordance with James Wilson’s aspirations for a strong federal government (*PBSA*, p. 386). That pattern breaks a precedent they detect in other government documents and other Declarations, beginning with the engrossed parchment. There the signatures are grouped by states (excepting that of Matthew Thornton, who signed it at a later date when there was no more room to put it in the proper place). The state groupings are even more explicit in the “authenticated Copy” printed by order of Congress in 1777 and some of the letterpress broadsides issued in the era of Binns and Tyler. By changing the order of the signatures, they say, the Sussex Declaration downgrades the prominence of the states and asserts the supreme power of the central government prescribed by the Constitution. Wilson’s role in framing the Constitution provides additional evidence for dating the manuscript. If that date is valid, and if Wilson was involved, the Sussex Declaration would be a bridge between the two great founding documents of the United States and a means of explicating the political precepts behind them.

The “hidden ordering principle” is based on a cipher system used in encrypted correspondence during the Revolutionary War. Allen and Sneff consulted with a codebreaking expert who confirmed that a system can be discerned in the sequence of signatures. I will not try to describe it in detail except to say

that the copyist chose names from different columns in the engrossed Declaration, first concentrating on one column, then another, while interspersing the names of the Georgia, Pennsylvania, and Delaware delegates to make it harder to crack the code. Nowhere do they explain why the code was predicated on columns rather than some other ordering principle, an alphabetical system for example, or a geographical progression from state to state, which might at least have some regional significance. Nowhere do they define the purpose of the code unless it was a means of randomizing the names while ensuring that none of them would be omitted. One would expect a code to contain a confidential message in danger of falling into the wrong hands, but it is unclear what needed to be kept secret on this occasion. The names were not protecting classified information. Instead of making complications, it is better to look for precedents and similar examples, a simple comparison of layout techniques and production methods. An easier explanation can be found in the field of graphic design, a basic skill of the artists who copied the Declaration.

Design considerations often dictated the sequence of signatures. Allen and Sneff are not correct in saying that the Sussex Declaration was the only one to interfere with the state groupings before the publication of the Bridgham print in 1836. The printers of the Boston Bewick facsimile rearranged the states to save on space and make room for the oak and olive frame. A Philadelphia printer moved the signatures out of order in an 1832 broadside reconfigured in a three-column format. After 1836 the signatures frequently appear in random order for no other reason than to fill an area predetermined by the decorative apparatus and the proportions of the page. Just to take one example, an 1845 letterpress broadside starts out with the state groupings but then switches out the signatures to rank them in a five-column format within a border of state seals. The printers disbanded the Maryland delegation and put each of the signatures in a different column.¹⁵

Like others who made those design decisions, Bridgham's artist sought to achieve a harmonious balance between image and text, a pleasing composition comprising the border of state seals, the calligraphic lettering, and the facsimile signatures. The lettering above and the signatures below were aligned to form two rectangular blocks, each even in weight, each fitting neatly inside the border. The artist allowed a tendril to extend beyond the border to complete the last line of text, a grace note following the phrase "*our* LIVES, *our* FORTUNES, and *our* sacred HONOR." Likewise, the signatures were spaced out to make the line endings flush with the text, even though the emblematic John Hancock had to be compressed, and some signatures lost their final flourishes. Signatures at the beginning and the end of the last line retained their flourishes for a decora-

15. *Declaration of Independence, and Geographical Chart of the U. States of America*, Philadelphia: Published by Thomas Morrison, C.A. Elliott, printer, 1832; *In Congress July 4th. 1776. The Unanimous Declaration of the Thirteen United States of America*, New York: Published and for sale by Humphrey Phelps, No. 4 Spruce-St., opposite City Hall, N. York, 1845. Copies of the Morrison broadside are in the Library of Congress, the American Philosophical Society, the Daniel Hamelberg collection, and the Albert and Shirley Small Special Collections Library, University of Virginia. Nine different versions of the Phelps broadside dating from 1845 to ca. 1854–1863 are described in *The Declaration in Script and Print*, item 47.

tive purpose, both looping down to fill hollow portions of the border. The state groupings would have had no meaning in this graphic concept and would have prevented the artist from placing the signatures in an even array, although vestiges can be detected in sequences of Maryland, North Carolina, and New Jersey delegates. Symmetry was the top priority of the artist. By a simple computation, he found a way to accommodate the fifty-six signatures in a graphic construct composed of six columns and nine rows with the exception of the first and last columns, which have ten signatures instead of nine.

Allen and Sneff argue against the priority of the Bridgham print on the grounds that the Sussex copyist could not have replicated its sequence of signatures. They believe that he would have had to backtrack between columns if he started the transcription process by reading across the rows. Diagrams in the *PBSA* article (pp. 401 and 402) intimate that he would have been confused by the extra names in the first and last columns and could not have dealt with them to arrive at the sequence in the Sussex Declaration. The transcription process does not seem all that difficult to me. The copyist proceeded through the six rows of names, one name after another left to right, allowing the first and last columns to be slightly staggered. He then inserted the two extra names, Roger Sherman and Elbridge Gerry, to restore the alignment between the inner and outer columns. Then he resumed the regular progression from left to right in the last three lines.

Turning that argument around, I question why Bridgham's artist would have replicated the sequence in the Sussex Declaration. Why would he use it as a starting point and then go off and consult some other source to turn those round hand names into facsimile signatures? In the manuscript, the names occupy six rows and then spill over to a seventh row containing a name and a half. What value would he have seen in that haphazard arrangement? He would have been much more interested in creating his own sequence to make a block of signatures in pleasing proportions. Let's say he knew about the hidden ordering principle and wished to preserve it. But why would he be privy to the secret rather than anyone else in the Declaration business? There are too many loose ends and coincidences in this scenario. It is much more likely that he began with the Boston Bewick letterpress broadside, an easily adaptable model for the layout and decoration. He then reconceived it as an engraved miniature and decided on a symmetrical composition in accordance with the aesthetic of that genre. To achieve the "neatness" highly prized in that period, he changed the order of the signatures to fit them in a rectangular block, nine rows deep, six columns across. Neatness, uniformity and symmetry were his goals and the real reasons for rearranging the signatures.

Misspelled signatures. Allen and Sneff note that the copyist misspelled some of the signatures. They cite eight problematic names, three of which might be excused as alternatives: Pinn for Penn, Rutlidge for Rutledge, Hayward for Heyward. A ninth could be added to their list, a garbled superscript in the signature of Samuel Huntington: Sam^u. for Sam^l. More egregious errors occur in four names: Floys for Floyd, Harnson for Harrison, Witherspoare for Witherspoon, and M. Keap for M: Kean. The *PBSA* article includes a series of thumbnail illustrations juxtaposing the Sussex Declaration versions with the signatures in the Stone facsimile, the best record of the originals in the engrossed Declaration. It is true that some of the originals are barely legible and that ignorant

compositors got them wrong in books and broadsides even in the eighteenth century. Otherwise Allen and Sneff do not dwell on the Sussex misspellings and do not try to explain them except to observe that they are more likely to stem from manuscripts than printed matter.

The facsimile signatures in Bridgham's miniature Declaration were responsible for the spelling mistakes in the Sussex Declaration. The signatures were already corrupted in transmission when Bridgham's artist copied them from the Boston Bewick broadside but were distorted even more when he cut them down to fit in his rectangular composition (figure 3). Tyler can be blamed for a calligraphic lilt he gave to the *d* in Floyd, which was nudged downward in his print and tilted even more in the miniature. The copyist read it as an *s* followed by a flourish. Samuel Huntington customarily abbreviated his first name as Sam^d, with a flourished superscript, sometimes writing two identifiable letters but more often just a double loop. The Boston Bewick Company's facsimilist closed the double loop or allowed it to be closed while making the transition from intaglio to letterpress. Bridgham's artist read the altered superscript as a *u* instead of *el*, a good guess but wrong nonetheless as can be seen in other examples of that signature before and after 1776. As far as the copyist was concerned, the superscript *u* was a legitimate abbreviation, an easy choice to make in comparison to the less legible names. The *n* in McKean, for example, was gradually twisted out of shape in the prints of Tyler, the Boston Bewick Company, and Bridgham, whose artist compressed and elongated it in such a way that the copyist opted for a *p* in the Sussex Declaration. Copying the *c* in Stockton, Bridgham's artist made a slip of the pen interpreted by the copyist as a cursive *r*, that too a plausible assumption although Storkton is not a common name. The name Witherspoare is unknown to genealogists and that mistranscription can only be explained by Tyler's decision to make an *a* out of the second *o* in the original and tidy up the final flourish, which was coarsened and then retrenched in the Boston facsimiles. I could cite other errors, mostly faults of the writing master and the miniaturists.

They were not the only ones to go astray in their attempts to transcribe the names. Printers of letterpress broadsides sometimes used facsimiles as their source documents with the best of intentions but with regrettable results. As one might expect, those farther removed from the original were more likely to make mistakes. A Philadelphia broadside published in 1855 repeats one of the names, misspells five of them, and gratuitously includes the Philadelphian Thomas Willing, who voted against the Declaration and did not sign the document. Lithographic artists encountered the same problems when they tried to make sense of the facsimile signatures. None of the Declarations I have seen to date is more delinquent in the spelling of the signatures than a lithographic map of New York City published ca. 1855 by Charles Magnus. A German immigrant, Magnus may not have been familiar with American proper names or with the English language, for he even had problems with the title, which commemorates the seventy-ninth year of "Indepedence." The map is decorated with a view of City Hall, steamships in the harbor, and the Declaration in the usual border of state seals, the text in a uniform cursive, and the signatures in a "gothic" all caps sans serif script. Magnus or his artist used the Binns print or one of its derivatives as a model for the border and a source for the text, which contains the same

W. J. Stone	B. O. Tyler	Boston Bewick Co.	L. H. Bridgham	Sussex Declaration
				<i>Wm. Stone</i>
<i>Sam^l W^m Huntington</i>	<i>Sam^l W^m Huntington</i>	<i>Sam^l W^m Huntington</i>	<i>Sam^l W^m Huntington</i>	<i>Sam^l W^m Huntington</i>
				<i>Thos. M. Heath</i>
				<i>Rich^d Norton</i>
				<i>Sh^r Witherspoon</i>

FIGURE 3. Progressive degradation of signatures in Declaration facsimiles. The signatures are reproduced the same size as each other to show changes in letterforms.

words emphasized in special scripts. The Binns signatures, however, mystified the lithographer who misspelled fourteen of the fifty-six names, mainly those that were hard to read. The New York lithographer committed mistakes not unlike those of the Sussex copyist: WITHERSPOART for Witherspoon, HOYG for Floyd, PINN for Penn, and M KEAN for M: Kean. Both had to contend with facsimile signatures, but even an immigrant poorly schooled in English was able to construe common names such as Harrison and Stockton.¹⁶

The copyist's mistakes are easier to explain if they can be imputed to the illegibility of his source and his failure to find a remedy. Some delegates scrawled their signatures in such a way as to make them difficult to read even in a full-size facsimile. Bridgham's miniature exacerbated the problem. Published sixty years after the fact, it was conceived as a novelty and was never intended to be an authoritative text, but it circulated widely and could easily come into the hands of someone whose notions of the American Revolution were more sentimental than scholarly. The copyist transcribed it by rote and relied on his imagination to interpret the parts he did not understand. He was unwilling or unable to find a better source for this display of penmanship and did not worry overmuch about the accuracy of his work.

Complications. A line of reasoning should follow the shortest distance between two points. That common-sense rule is a deciding factor for testing hypotheses in bibliographical investigations—or any field of intellectual inquiry. The complications in Allen and Sneff's arguments undercut their claims for the priority of the Sussex Declaration. If it came first and served as a source for the Bridgham facsimile, we would have to believe that the Bostonians copied the same order of names while consulting another source to render them in facsimile. We would have to believe that they took the oversize words in that manuscript as cues to execute the same words in ornamental penmanship even though they had the Boston Bewick edition easily at hand and could use that as a model for the "emphatical words." We would have to accept the hypothesis that the Sussex Declaration or a derivative manuscript influenced Tyler's choice of "emphatical words" sometime around 1818 and then resurfaced eighteen years later to guide the work of the Bostonians. If we follow that line of reasoning, we would have to imagine that James Wilson was willing to overlook the atrocious spelling of the names even though he depended on them to affirm his position during the debates on the Constitution and could have corrected them on the basis of personal

16. *Declaration of Independence. In Congress, at Philadelphia, July 4th, 1776*, Philadelphia: Published by I. Kohler, No. 104 North Fourth Street, 1855; *New-York City & County Map with Vicinity Entire Brooklyn Williamsburgh Jersey City &c. in the 79th. Year of the Independence of the United States*, New-York: Published by Chs. Magnus, 12. Frankfurt Street, ca. 1855. A copy of the Kohler broadside is at the American Antiquarian Society; copies of a German version with the same mistakes are at the Library Company of Philadelphia and in the Daniel Hamelberg collection. Magnus also issued the Declaration in a two-leaf brochure. A copy of the map is in the Princeton University Library; copies of the brochure are at the American Antiquarian Society, the Library Company of Philadelphia, and the Albert and Shirley Small Special Collections Library, University of Virginia.

acquaintance. A few loose ends may be permissible when plying disparate strands of evidence, but these are too many to be believed.

We do not have to work so hard if we allow the Bridgham miniature to be the source of the Sussex Declaration. If we accept that hypothesis, we do not have to explain away the damage in the title, the errors in the text, the absence of the long s, and the profusion of misspelled names. We do not need a secret code to understand the reordering of the signatures. We are not obliged to excuse the poor quality of parchment, the marks of neglect, and the amateurish work of the copyist if he was engaged in a penmanship exercise rather than a “ceremonial” commission. We can even dispense with the provenance research if the manuscript came to the West Sussex Record Office by way of a local history collector who had only a tangential relationship with the Richmond family. At this point we can only guess where the collector obtained it, but we could consider the possibility that Bridgham brought copies of the miniature to England and that one of them piqued the curiosity of the copyist. After the novelty wore off, the parchment was folded up and filed away until it was retrieved by the collector. Speculation along those lines may be tempting but is not necessary to vouch for the priority of the miniature.

Allen and Sneff published their findings in a bibliographical journal and then used that publication as the premise for their account of the Constitutional Convention. They are political historians who want to get the dating questions out of the way so they can do what they do best, a study of James Wilson’s political philosophy. Allen is James Bryant Conant University Professor at Harvard University, director of the Allen Lab for Democracy Renovation, and author of *Our Declaration: A Reading of the Declaration of Independence in Defense of Equality* (2014). Sneff worked at the Declaration Resources Project before completing a doctorate in American history with an emphasis on material culture and history of the book. By no means are they the first to use bibliographical analysis as an avenue for research in other fields, but this approach has obstacles and limitations that can be overcome only by observing its rules and regulations. Every field has its own methodology and this one is no exception: a rigorous routine is needed to ensure the orderly analysis of texts produced in quantity.

Bibliographers have learned the hard way about the dangers of examining documents in isolation. High spots deserve extra effort, but it is not enough to focus on milestones of history, landmarks in philosophy, breakthroughs in science, and canonical works of literature. The context is important too if only as a gauge of value and a basis for comparison. In fact, Allen and Sneff do have a bibliographical context for their work. Along with the documentation about the Sussex manuscript, the Declaration Resources Project website offers a pdf catalogue of Declaration editions and manuscripts listing 747 items from 1776 through 1826, plus an additional manuscript appended in June 2023. The catalogue tracks the dissemination of this text in different formats—books, periodicals, prints, and broadsides—a commendable attempt to be comprehensive. It helps, for example, to explain the patriotic mindset of the printmaker John Binns, who featured the text in his newspaper long before he produced the print.

It is, however, an enumerative bibliography with minimal descriptions mainly based on secondary sources. It covers only the first fifty years of the Declaration, not long enough to account for the surge of patriotic publications in the nineteenth century.¹⁷

If it had gone on for ten more years it would have brought Allen and Sneff up to the Bridgham miniature. But even then a brief listing of this kind would not show the facsimile's relevance to their concerns or its relationship to the other Boston editions. Worthy in other ways, an enumerative bibliography is not intended to answer questions about form and content. It does not describe physical objects with the details that might disclose the influence of one artifact on another, the information that might reveal resemblances in production methods, textual elements, and stylistic motifs. To make their claims for the Sussex Declaration, Allen and Sneff looked hard for this kind of information but only looked in one place and did not consider the commercial context. The manuscript they found deserves bibliographical scrutiny, but if I am correct about its sources, it has nothing to do with James Wilson and the Constitution. Rather, it should be dated at least fifty years later, when someone copied Bridgham's engraving in an attempt to emulate the engrossed Declaration. If not an entirely successful effort, it is an interesting byproduct of the trade in patriotic prints and a good example of a text entangled in transcriptions large and small.

17. Many of the catalogue entries are derived from Stephen M. Matyas, Jr.'s *Declaration of Independence: A Checklist of Books, Pamphlets, and Periodicals Printing the U.S. Declaration of Independence, 1776–1825* (2009). The Matyas checklist has transcriptions of titles, collation statements, contents notes, and locations of copies examined but does not include prints and broadsides. A pdf version can be downloaded at <http://usdeclarationofindependence.com> (accessed 20 March 2023).